

from calendar without prejudice.

NOTE: Effective August 21, 2026, the matter is assigned for all purposes to Dept. 30, the Hon. Virginia George. The case will be on “To Set” on December 15, 2026, at 9:00 a.m. in Dept. 30.

7. 9:00 AM CASE NUMBER: C25-03537
CASE NAME: KARL BROWNEE VS. CALIFORNIA COMMUNITY HOUSING AGENCY
COMPLAINT
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

The hearing on defendant’s demurrer is rendered moot by the Plaintiff’s filing of a First Amended Complaint on August 10, 2026.

8. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
TO STRIKE COMPLAINT / CONT'D PER TR OF 7/10/2026
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi’s special motion to strike the complaint of plaintiff Andrei Romanenko under Code of Civil Procedure section 425.16.

Factual Allegations and Background

Plaintiff Andrei Romanenko (“Plaintiff”) is an attorney who specializes in immigration and nationality law. In June 2022, Defendant Roman Kalnytskyi, (“Defendant”) retained Plaintiff to represent him in preparing and filing a form for immigration benefits in the U.S. for \$1,000. Plaintiff agreed to credit the \$1,000 fee for this work towards a future retainer agreement for representation in immigration court, if Defendant needed such representation later. In October 2022, Defendant retained Plaintiff to represent him in immigration court in removal proceedings for a flat fee of \$12,000. Plaintiff performed work for Defendant under the terms of the agreement.

In March 2024, Defendant terminated Plaintiff’s representation and requested a refund. Plaintiff accounted for the time spent on Defendant’s matter and issued a check for the balance of the unearned fees per his calculation. Defendant disagreed as to the amount that should have been returned.

On January 20, 2025, Defendant posted a one-star review on Google Maps with a lengthy description of his view of Plaintiff’s handling of his case and his problems therewith. (The specific statements at issue will be discussed in detail below.) Plaintiff emailed Defendant advising him that the review contained “untrue and defamatory statements” and requested that it be removed. Plaintiff also indicated that he would sue Defendant for defamation.

Thereafter, on February 13, 2025, Defendant posted a one-star review about Plaintiff on Yelp which contained statements Plaintiff believes were false and defamatory. On August 25, 2025, Defendant

posted another one-star review on Avvo which also contained false and defamatory statements, per Plaintiff's position. On December 22, 2025, Defendant reposted a one-star review about Plaintiff on Avvo, again with objectionable statements.

Plaintiff alleges that all the above reviews contain false and defamatory statements. Accordingly, Plaintiff filed his Complaint on January 20, 2026, asserting six causes of action: (1) defamation, (2) false light, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, (5) declaratory relief, and (6) defamation (against Does 1-10). The first four causes of action are all based on the postings outlined above and the specific statements contained therein listed in the Complaint. The declaratory relief cause of action seeks to have the statements outlined in the Complaint which are deemed defamatory removed from the websites and Defendant ordered to refrain from posting those statements elsewhere in the future.

Defendant makes a special motion to strike Plaintiff's complaint in its entirety under Code of Civil Procedure section 425.16 ("anti-SLAPP motion") as based on free speech and protected activity under that statute.

The Two-Step Analysis for anti-SLAPP Motions

Code of Civil Procedure § 425.16(b)(1) provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

Section 425.16(e) lists activities that qualify as "an act in furtherance of a person's right of petition or free speech" under the statute. (Code of Civ. Proc. § 425.16(e)(1)-(4).) In *Baral v. Schnitt* (2016) 1 Cal.5th 376, the California Supreme Court explained the two step approach courts take in ruling on an anti-SLAPP motion: "First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation omitted.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Id.* at 384-385.)

The purpose of the anti-SLAPP statute is to encourage participation in matters of public importance and prevent meritless litigation aimed at chilling the exercise of constitutional free speech and petitioning rights under the First Amendment. (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 ("*Park*").)

Standing

Defendant argues that Plaintiff lacks standing to bring his claims because his reviews on various websites "concern legal services provided by Plaintiff's law office pursuant to written agreement," but Plaintiff "brings this action in his individual capacity, severing the causal link between the challenged statements and any alleged injuries." (Motion at 7:18-21.)

First, Defendant cites no law to support his argument. Every memorandum of points and authorities "must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal.

R. Ct. 3.1113 (b).) Rule 3.1113 prevents the “trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

Second, the first retainer agreement submitted by Defendant shows that Defendant “retains Anrei Romanenko ... as legal counsel in connection with the matters described” therein. (Kalnytskyi Decl. Ex. A.) Thus, Defendant’s argument that the agreement was between him and a law firm – as opposed to Mr. Romanenko – is incorrect. At least with relation to the first engagement.

The second retainer agreement does indicate that Defendant is retaining “Law Office of Andrei Romanenko PC,” and not Plaintiff individually. (*Id.* Ex. B.) This difference is of no significance. The statements at issue – discussed in detail below – were directed toward Plaintiff personally. As such, Plaintiff has standing to bring this action for defamation (and related claims) against Defendant.

Analysis

A. Defendant’s Burden Under Prong 1

In the first step, the party bringing the anti-SLAPP motion (Defendant) must satisfy a “threshold burden” by showing that the challenged cause of action arises from protected activity which fits one of the four categories listed in Code of Civil Procedure section 425.16(e). (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) Protected activity includes: “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest,” and communications made “in connection with a public issue or an issue of public interest.” (Code Civ. Proc. §§ 425.16 (e)(3), and (e)(4).) These are the grounds relied on by Defendant.

“A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citation omitted.] Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must *itself* have been in furtherance of the right of petition or free speech.’ [Citations omitted.]” (*Park, supra*, 2 Cal.5th at 1062-1063 [italics in original].) To evaluate the cause of action under the standard in *Park*, “courts should consider the elements of the challenged claim and what actions by the defendant supply those elements, and consequently form the basis for liability.” (*Park, supra*, 2 Cal.5th at 1063, 1064 [protected activity must supply one or more elements of the cause of action challenged by the anti-SLAPP motion to satisfy the first step].) The Court in *Baral* explained that a “claim” for purposes of an anti-SLAPP motion means “allegations of protected activity that are asserted as grounds for relief.” (*Baral, supra*, 1 Cal.5th at 395, italics omitted.)

B. Protected Activity as to 1st Through 4th CoAs

In this case, Plaintiff is alleging claims based on Defendant’s posts to publicly accessible websites, including Google Maps, Yelp, and Avvo. Plaintiff has not disputed that the websites are public websites and a public forum. (*See, e.g., Bently Reserve L.P. v. Papaliolios* (2013) 218 Cal.App.4th 418 [involving Yelp reviews of landlords, where parties did not dispute that Yelp was a public forum]; *Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1366 [“It is settled that ‘Web sites accessible to the public . . . are “public forums” for purposes of the anti-SLAPP statute.’ [Citations omitted.]”].)

Nor does Plaintiff dispute Defendant’s assertion that a consumer’s reviews of professional services,

such as a review of the quality of legal services and billing practices, relate to an issue of public interest. Notably, Plaintiff actually acknowledges that “consumer reviews posted on Google, Yelp, and Avvo are often treated as speech in public forums concerning matters of public interest,” citing *Wong*, supra, 189 Cal.App.4th at 1366-1367.) (Opp. at 6:3-5.)

Instead, Plaintiff argues that “Defendant’s Motion should be denied because it fails to analyze the specific causes of action and allegations actually pled in the Complaint.” (Opp. at 2:8-9) Plaintiff argues that Defendant must ‘analyze the specific claims and allegations challenged by an anti-SLAPP motion rather than evaluating the complaint at a high level of generality,” citing *Baral*, supra, 1 Cal.5th 376 and *Park*, supra, 2 Cal.5th 1057 – without much analysis of either case.

In *Baral*, the California Supreme Court explained the defendant’s burden under the first step:

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached.” (*Id.* at 396.)

As the *Park* court explained, the “focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.’” (*Park*, supra, 2 Cal.5th at 1063.)

Plaintiff argues that Defendant “makes little or no effort to analyze the individual causes of action asserted in the Complaint,” but instead “attacks the Complaint as a whole and assumes that because the challenged statements were published on review websites, every cause of action automatically falls within the Anti-SLAPP statute.” (Opp. at 125-2:2.)

While the Complaint asserted five causes of action against Defendant, all of them are based on the same allegations – the statements made by Defendant on the various websites. There are no allegations of any other actions by Defendant that support any other claims. For example, the second case of action for false light indicates that it is based on Defendants “statements about Plaintiff on Google, Yelp, and Avvo, the text of which is copies word for word in Paragraphs 19, 21, 22, 23 of this complaint.” (¶ 36.) These are the paragraphs setting out the basis for the defamation claim. Likewise, the IIED and NIED claims are based on Defendant’s “conduct of posting reviews on Google, Yelp and Avvo...” (¶¶ 42, 48.)

“‘A ‘false light’ cause of action is in substance equivalent to a libel [i.e. defamation] claim....’” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1264 citation omitted.) “Indeed, ‘[w]hen a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action.’” (*Ibid.* citation omitted.) Likewise, courts have found that when emotional distress claims are based on the same facts as a defamation claim – they stand or fall based on the defamation cause of action. (See e.g. *Readers’s Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 265-66; *Flynn v. Higham* (1983) 149 Cal.App.3d 677, 681-82.)

As the *Flynn* court noted, allowing an emotional distress claim “based on the same acts which would

not support a defamation action, would allow plaintiffs to do indirectly that which they could not do directly. It would also render meaningless any defense of trust or privilege.” (*Flynn*, 149 Cal.App.3d 682.) Accordingly, by arguing that none of the statements support a defamation claim – Defendant is contesting each of the separate causes of action as they are all reliant upon the defamation claim.

In addition, there is no indication in Plaintiff’s cited authority that a defendant is required to list all elements for each cause of action and analyze each and every claim individually – when all the claims are based on the same allegations. Defendant argues that each of the statements set forth in the Complaint are protected activity, and thus each of Plaintiff’s claims – all of which rest solely on the propriety of those statements – fail. As the California Supreme Court stated, the “moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (*Baral*, *supra*, 1 Cal.5th at 396.) That is what Defendant has done. There is no requirement that Defendant provide the type of granularity Plaintiff appears to be seeking.

Based on the above, the Court concludes that the weight of authority supports that the reviews of Plaintiff’s business constitute protected activity as written statements made in connection with an issue of public interest, specifically, providing information to consumers potentially considering dealing with Plaintiff’s business and warning consumers not to use Plaintiff’s services in choosing an attorney to represent them. (Code Civ. Proc. § 425.16(e)(3).) For these reasons, Defendant has met his initial burden under Prong 1 of demonstrating the causes of action asserted in the Complaint arise out of protected activity. (Code Civ. Proc. § 425.16(e)(3).)

Alternatively, the statements may meet the standards set forth in *FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133 for application of the catch-all provision. In that case, the Court established a two-part analysis “rooted in the statute’s purpose and internal logic” for courts to determine if the activity in question is protected under the catchall provision of Code of Civil Procedure § 425.16(e)(4): “First, we ask what ‘public issue or [] issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (*FilmOn.com*, *supra*, 7 Cal.5th at 149-150.) As further guidance, the Court explained that “a statement is made ‘in connection with’ a public issue when it contributes to—that is, ‘participat[es]’ in or furthers—some public conversation on the issue. [Citation omitted.] But the inquiry of whether a statement contributes to the public debate is one a court can hardly undertake without incorporating considerations of context—including audience, speaker, and purpose.” (*Id.* at 151-52.) “ ‘[C]ontribut[ing] to the public debate’ means the defendant ‘participated in, or furthered, the [public] discourse that ma[de] [the] issue one of public interest.’ ” (*Id.* at 150-51.)

Consumers have an interest in the businesses and attorneys serving their community and whether they should engage the business. Reviews based on personal experience with the attorney or law firm’s services are matters of public interest in that community and contribute to the public discourse about the attorney or law firm to select to represent them, as courts explicitly or implicitly held in the cases which have found protected activity for reviews and public postings about specific businesses in such cases as *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 900; *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146; *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 343-44; *Wong v. Jing*, *supra*, 189 Cal.App.4th at 1366-1367.)

C. Plaintiff's Burden under Prong 2

If the moving party meets its burden of demonstrating the claims are based on protected activity, the Court evaluates Prong 2 and the burden shifts to the plaintiff to demonstrate a probability of prevailing on the merits of the claims. (Code Civ. Proc. § 425.16(b)(1); *Navellier*, supra, 29 Cal.4th at 88.)

“To show a probability of prevailing on his claims, ‘[t]he plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” [Citations omitted.] . . . [T]hough the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.[.]’ [Citation, internal quotation marks omitted.]” (*Daniel v. Wayans* (2017) 8 Cal.App.5th 367, 388.) Plaintiff’s proof on the merits of its claim must be based on competent, admissible evidence. (*Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 788; *Daniel*, supra, 8 Cal.App.5th at 388.)

D. Statements At Issue

In reviewing the Complaint, Plaintiff quotes approximately 22 different statements made by Defendant over the three websites – depending on how you count the quotations. Some quotations contain multiple sentences, while others are merely phrases taken from the postings. There is also some overlap between the statements made on each posting.

In his opposition memorandum, Plaintiff references 8 separate quotations and appears to include a few summaries of statements – in that some of the references do not contain quotations. For example, Plaintiff indicates that Defendant asserted the Plaintiff “continued to withdraw money even after being terminated in order to avoid refunding the client,” which is provided in quotation marks – tracking a quotation from the Complaint. Plaintiff also asserts that Defendant stated: [Plaintiff did not request evidence and did nothing to secure a hearing,] which is not provided in quotation marks. This phrasing also does not appear in the Complaint.

Plaintiff also includes a chart that “summarizes why Plaintiff has at least minimal merit,” but is not “offered as an exhaustive trial presentation but as a roadmap showing that Defendant’s statements are verifiable and disputed.” (Opp. at 13-14.) The chart provides some quotations, some partial quotations, and some summaries of Defendant’s statements. It contains 7 statements or ‘categories.’

Several statements alleged in the Complaint are not contained or referenced in the Opposition. For example, the Complaint notes that the Avvo review contained the statement: “Romanenko assured me that TPS would not affect the asylum case.” (¶ 22.) That statement is not contained in the Opposition. There is a reference in the body of the Opposition that the Complaint alleges that Defendant asserted that Plaintiff [provided incorrect legal advice regarding TPS and asylum proceedings.] Any specific reference to statements by Defendant about the TPS is not included in the chart.

As noted above, since the Court found that Defendant met his burden as to Prong 1 of the analysis the burden has shifted to Plaintiff to demonstrate a probability of prevailing. Given Plaintiff’s burden

under Prong 2, the Court will only address those statements which Plaintiff has put forth in his Opposition and argued he can show a probability of prevailing on. As to any statements set forth in the Complaint which are not identified in the Opposition, Plaintiff has failed to meet this burden – as he has failed to present any evidence or argument to support a showing that there is even minimal merit to the claims that those statements are defamatory.

The Court will use Plaintiff's chart as a guide to analyzing the alleged defamatory statements.

E. Prong 2 – Plaintiff's Probability of Prevailing

As all Plaintiff's claims are based on the defamation cause of action, the Court will focus its inquiry on determining if Plaintiff meets his burden to demonstrate the probability of prevailing on that cause of action.

"The tort of defamation 'involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage.' [Citations omitted.]" (*Taus v. Loftus* (2007) 40 Cal.4th 683, 720.) (*See also Wong, supra*, 189 Cal.App.4th at 1369.).

"In defamation actions generally, factual truth is a defense which it is the defendant's burden to prove." (*City of Costa Mesa v. D'Alessio Investments, LLC* (2013) 214 Cal.App.4th 358, 378.) "Indeed, even 'substantial' truth is a defense." (*Bently Reserve LP v. Papaliolios* (2013) 218 Cal.App.4th 418, 434.) "[T]he law does not require [the defendant] to justify the literal truth of every word of the allegedly defamatory content, nor must we parse each word ... to determine its truthfulness. 'It is sufficient if the defendant proves true the substance of the charge, irrespective of slight inaccuracy in the details, "so long as the imputation is substantially true so as to justify the 'gist or sting' of the remark." (*Ibid.*)

On Prong 2, the Court considers whether "plaintiff has stated a legally sufficient claim and made a *prima facie* factual showing sufficient to sustain a favorable judgment." (*Baral, supra*, 1 Cal.5th at 385.) The Court "accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law." (*Id.*) The Court does not weigh the evidence submitted by defendant against Plaintiff's evidence. (*Daniel, supra*, 8 Cal.App.5th at 388.) Nevertheless, in these circumstances, the "evidence of falsity must be minimally sufficient to support a verdict in plaintiff's favor on the point. [Citation omitted.]" (*Industrial Waste, supra*, 4 Cal.App.5th at 1156-1157.)

Statements At Issue

As noted above, the Court will use the chart provided by Plaintiff as a guide to analyze the statements Plaintiff contends in his Opposition are defamatory and for which he has met his burden to show have 'minimal merit.'

1. Plaintiff "withdraws money without my permission" and "without notifying the client, [Plaintiff] deducts money"

Per the Complaint, the Yelp posting included the following statement: "He does not comply with the terms of the contract, and without notifying the client, he deducts money." The Avvo posting includes a substantially similar statement: "He does not follow the terms of his own contract, withdraws

money without permission....” It also includes the statement: “He continued to withdraw money even after being terminated in order to avoid refunding the client.”

Defendant does not address these statements head-on but appears to argue that these statements were either factually accurate or merely his opinion based on his general arguments about the entirety of the Complaint.

Whether a statement is a “fact” or an “opinion” is not dispositive of whether plaintiff can state a cause of action for defamation. “ ‘[A] statement that implies a false assertion of fact, even if couched as an opinion, can be actionable.’ ” (*Dickinson v. Cosby* (2019) 37 Cal.App.5th 1138, 1163 [quoting *McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112]) A statement of opinion can be actionable if “a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact.” (*Id.* [quoting *Franklin v. Dynamic Details, Inc.* (2004) 116 Cal.App.4th 375, 385])

Courts apply a totality of the circumstances test to determine whether the statement implies a false assertion of fact by evaluating the language of the statement and the context in which it was made, including the audience to whom it was stated. (*Id.*) If the statement discloses facts that are false as the basis for the opinion, or if the statement implies there are unstated facts to support the opinion and those facts are false, the statement can be actionable as defamation. (*Id.* at 1163-64)

Plaintiff argues that the evidence shows that these statements were and are false. The retainer agreement regarding representation in immigration court (Retainer 2) indicates that Plaintiff was being retained for a flat fee of \$12,000. (Ex. B at ¶ 2.) Retainer 2 makes clear that the client (Defendant) may discontinue Plaintiff’s services at any time. (*Id.* ¶ 5.) It also states: “Client has the right to ... a refund of any amount of the fee **that has not been earned** in the event the representation is terminated or the services for which the flat fee has been paid are not completed.” (*Id.* ¶ 11, emphasis added.) Retainer 2 also lists the rates for services: \$500/hour for attorneys and \$200/hour for paralegals. (*Id.* ¶ 3.)

It is undisputed that at some point Defendant terminated Plaintiff’s services. At that time, Plaintiff calculated the amount of time spent on the file, multiplied by the applicable hourly rates, and deducted that amount from the \$12,000 flat fee. (Romanenko Decl. ¶ 7-9.)

Defendant argues that the hourly rates only applied to ‘additional costs’ – such as translations, notary fees, interpreter fees, travel, and outside experts, all of which require advance permission from the client before being incurred – apparently relying upon paragraph 3 of Retainer 2. He argues that no “provision of [Retainer 2] converts, reduces, or recalculates that \$12,000 flat fee into an hourly-rate obligation,” and that the post-termination accounting by Plaintiff is “a billing framework Plaintiff invented unilaterally.” (Reply at 6:3-6.) Instead, Defendant argues that the engagement for representation in immigration court was for the flat fee of \$12,000 and if he terminated Plaintiff’s services before completion of the representation, he was required to receive his full \$12,000 back – without any offset for the time spent by Plaintiff working on the matter.

Plaintiff’s interpretation of Retainer 2, however, is a reasonable one. “The contractual language must be construed in the context of the document as a whole and in the circumstances of the case.” (*Remedial Construction Services, LP v. AECOM, Inc.* (2021) 65 Cal.App.5th 658, 663.) The court gives “effect to all of a contract’s terms, and ... avoid[s] interpretations that render any portion superfluous,

void or inexplicable.” (*Ibid.*)

As noted above, Retainer 2 explicitly states that if representation is terminated the client is entitled to a refund of “any amount of the fee **that has not been earned...**” In other words, Plaintiff will be compensated for any time spent on the matter prior to termination of his services. Paragraph 3, which sets out the hourly rates for the attorneys and paralegals sets forth a framework for how this calculation will be performed. That section states that “time charged includes, but is not limited to, the time Attorney spends on telephone calls, e-mails relating to Client’s matter,” etc.

While that paragraph also outlines what ‘additional costs’ the client may be responsible for – which are not covered by the flat fee – there is no indication that the rates set forth only apply to those ‘additional costs.’ The ‘additional costs’ include things such as notary fees, interpreter fees, and ‘retaining experts or contract attorneys.’ These do not relate to hourly work by the attorneys/paralegals.

The phrase “that has not been earned” must mean something in Retainer 2. The most reasonable interpretation is that if the representation is terminated early, Plaintiff can calculate the time spent and multiply it by the applicable hourly rate to determine how much ‘has been earned’ to that point. He can then deduct that amount from the flat fee and is required to refund the rest. If, however, the time spent exceeds the flat fee, Plaintiff would not be able to bill the client for that additional time. In other words, the flat fee puts a cap on how much Plaintiff can earn for the assignment.

Plaintiff points to Retainer 2 along with his billing record for the matter (Kalnytskyi Decl. Ex. C) to show how he calculated the amount to be refunded to Plaintiff. He also points to the refund check (Kalnytskyi Decl. Ex. I) to show that a refund was made.

“The court’s single task is to determine whether the plaintiff has made a prima facie showing of facts supporting his or her cause of action.” (*Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 702.) The court does not “weight credibility” nor “evaluate the weight of the evidence.” (*Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699.) “Only a cause of action that lacks ‘even minimal merit’ constitutes a SLAPP.” (*Id.* at 700.)

Plaintiff has presented sufficient evidence to show that his claims related to the statements that Plaintiff withdrew money without permission and/or notifying Defendant are potentially meritorious. As such, Defendant’s motion is **denied** as to those statements.

2. Plaintiff “charges twice ... this is fraud.”

In the Avvo review, Defendant wrote: “He also charges twice for services that have already been provided – this is fraud.” (Ex. G.) Defendant does not directly address this statement in his motion or reply. Plaintiff’s opposition papers, while generally referring to this statement, do not provide any direct argument regarding how to analyze the statement.

Plaintiff’s declaration, however, does state that he “did not charge twice for the same service.” (¶ 10.) The chart provided in the Opposition, under the column for ‘Evidence Creating Probability of Prevailing’ cites to Exhibits A and B – which are the two retainer agreements; and Exhibit C which is the billing record for the Defendant’s matter.

The above analysis appears to apply to this statement as well. If there were duplicate billing entries in

the billing records – Defendant would have a defense of truth for this claim. Defendant does not identify any such entries. If there are entries that Defendant could argue were duplicative, this is a question of fact to be determined later. Here, the Court is only required to find that Plaintiff's cause of action has 'minimal merit.' Plaintiff has declaration that he did not charge twice for the same service and the billing records indicating as such are before the Court. While Defendant may be able to show at a later date that the descriptions hide the fact that some tasks were billed twice – that issue is not before the Court at this time.

Based on the above, Plaintiff has presented sufficient evidence to show that his claims related to the statement that Plaintiff billed twice for services and that such an action "is fraud" is potentially meritorious. As such, Defendant's motion is **denied** as to those statements.

3. "Nothing has been refunded" – i.e. no money has been returned.

The Complaint alleges that on February 13, 2025, Defendant posted a one-star review on Yelp that included the statement: "To date, of the \$11,000 paid, nothing has been refunded." Defendants submitted the Yelp review as Exhibit H to his declaration. This confirms that the above statement was posted by Defendant on that date. Defendant argues that this statement is one of fact and that it is verifiably false.

Plaintiff indicates in his declaration that a "refund check was prepared for the unearned portion [of his fees] calculated by my office." (Romanenko Decl. ¶ 9.) He also confirms that Exhibit I to Defendant's declaration is a copy of the refund check prepared by his office. (*Id.* ¶ 3; D's Decl. Ex. I.) Exhibit I is a copy of a check from the Law Office of Andrei Romanenko PC made out to Defendant in the amount of \$2,665. The memo indicates: "full refund of unearned att's fees." The check is dated April 25, 2024 – almost one year prior to the Yelp post.

In Reply, Defendant takes issue with the method Plaintiff used to calculate the refund. (Reply at M.) He then argues, in part, that the statement that "no refund was issued [is] therefore not [a] false statement[] of fact..." While Defendant may take issue with how Plaintiff calculated the amount to be refunded under the representation agreement, whether any amount was repaid *is* a statement of fact. Here, it is verifiably false. Plaintiff has presented evidence that he did indeed issue a refund check to Defendant for 'unearned attorney fees.' In fact, Defendant is the one that included that evidence as part of his declaration – showing that he received the refund check.

A defamatory statement is one "which tends to injure 'reputation' in the popular sense; to diminish the esteem, respect, goodwill or confidence in which the plaintiff is held...." (*O'Hara v. Storer Communications* (1991) 231 Cal.App.3d 1101, 1118 citation omitted.) Stating that an attorney did not provide any refund for amounts he was not entitled to clearly falls within this definition.

Plaintiff has met his burden to show this basis for his defamation claim has 'minimal merit.' As such, Defendant's motion is **denied** as to those statements.

4. The Contract was for \$10,000 and Plaintiff increased fee by \$2,000

The Google Maps review, mis-quoted in paragraph 23 of the Complaint, includes the following statement: "After a few months, Romanenko refused to continue handling the asylum case unless the fee was increased by \$2,000, citing the following justification: 'Our signed contract says nothing about

fixing the price for the future,’ and the contract stated \$10,000.”

Plaintiff cites the two retainer agreements, which show that he was first retained to prepare and file form I-589 for \$1,000. (Kalnytskyi Decl. Ex A.) Thereafter, Retainer 2 was executed where he was retained to represent Defendant in immigration court. The second Agreement indicates that cost is a flat fee of \$12,000, but that “\$1,000 will be credited for preparing I-589.” (*Id.* Ex. B.) Thus, the terms of Retainer 2 explicitly state that it was for \$12,000 – with a \$1,000 credit for the previous work. Thus, the statement is objectively and provably false.

On Reply, Defendant argues that the communications between the parties indicate that the original agreement was for \$10,000, but that draft “was never signed – not because Defendant refused, but because Plaintiff subsequently refused to proceed at \$10,000 and demanded \$12,000 instead.” (Reply at 5:1-23.) In other words, he is arguing that there was an initial agreement that the representation would be for \$10,000 but was later changed to \$12,000 – before any contract was signed between the parties.

There are a couple problems with Defendant’s argument. First, none of the communications Defendant refers to in his reply are provided. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “Even if they were, the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmty. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

Second, the statement that the ‘contract stated \$10,000’ is demonstrably false. Retainer 2, which Defendant submits as Exhibit B, explicitly states it is for \$12,000. While there may have been initial discussions and negotiations regarding a lower amount (i.e. \$10,000), Defendant specifically concedes that “[t]hat draft was never signed.” (Reply at 5:5-6.)

The above demonstrates that Plaintiff has met his burden to show this basis for his defamation claim has ‘minimal merit.’ As such, Defendant’s motion is **denied** as to those statements.

5. Plaintiff did not request evidence/ did nothing to secure hearing

Plaintiff cites paragraph 22 of the Complaint, which relates to the one-star review on Avvo made by Defendant. In that review, Defendant wrote: “Romanenko did not request or work with evidence,” and “You did nothing to secure the scheduling of my individual hearing.” Defendant argues that these statements are true, and therefore not defamatory.

Plaintiff points to the billing records attached to Defendant’s declaration which shows the work spent on Defendant’s file. It includes entries for research, drafting motions, and reviewing IJ orders. It also specifically includes the following entries: “emailed client a notification of cancelled hearing” and “responded to the court clerk’s e-mail with attorney’s dates of unavailability for the upcoming individual hearings.” These entries appear to confirm that there was a hearing scheduled – which was subsequently cancelled. And that there were attempts to schedule a new hearing.

The above demonstrates that Plaintiff has met his burden to show this basis for his defamation claim has ‘minimal merit.’ As such, Defendant’s motion is **denied** as to those statements.

6. Paperwork was done by incompetent staff/many mistakes

Plaintiff cites paragraph 22 of the Complaint, which relates to the one-star review on Avvo made by Defendant. In that review, Defendant wrote: "... and for \$500 per hour made many mistakes in the documents," and "He claims that he personally prepares the paperwork, but in reality it is done by incompetent staff in his office."

Plaintiff again points to the billing records attached to Defendant's declaration which detail the work he billed for. This evidence, however, does not show any of the actual work. It does not indicate that no mistakes were made or that there were not any errors in any paperwork or applications that he filed. As the saying goes, "To err is human." It would be incredible to think that Plaintiff never made any mistakes in any documents prepared by his office. Even if he did do perfect work, he has not presented any evidence at this stage to so indicate.

The billing records also do not address the claims that Plaintiff's staff may have prepared any of the paperwork. Plaintiff's declaration appears to confirm that his staff did perform work drafting materials. As declared by Plaintiff: "During the representation, **my office performed legal work for Defendant** including ... preparation and filing activity, review of documents, preparation of immigration pleadings and filings" (§ 7.)

Regarding the competence of the staff, those statements relate to other people – not Plaintiff. In addition, a statement about the competence of a person is an opinion regarding their ability to perform a task. Merriam-Webster defines 'competence' to mean (among other things): "the quality or state of having sufficient knowledge, judgment, skill, or strength (as for a particular duty or in a particular respect)" (<https://www.merriam-webster.com/dictionary/competence>) This statement is too vague to constitute a provable fact. Which staff members were not competent in what tasks?

The key in determining whether a statement is protected opinion or a provable fact is "not parsing whether a published statement is fact or opinion, but 'whether a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact.'" (*ZL Technologies, Inc. v. Does 1-7* (2017) 13 Cal.App.5th 603, 624.) In making this determination, the Court uses a 'totality of the circumstances' test and puts itself in the place of an average reader to determine the natural and probable effect of the statement. (*Ibid.*)

When read in the context of the posting, an average reader would not interpret this statement as a defamatory smear about the specific abilities of Plaintiff's staff, but rather as an angry opinion of a client who felt like he did not get the results he was expecting.

The above demonstrates that Plaintiff has failed to meet his burden to show this basis for his defamation claim. As such, Defendant's motion is **granted** as to those statements.

7. Plaintiff lied and deceived people.

Plaintiff again cites paragraph 22 of the Complaint, which relates to the one-star review on Avvo made by Defendant. In that review, it is alleged that Defendant wrote: "... you are lying and deceiving people."

That small quote is taken out of context. The post at issue includes Plaintiff's response and then an edited post by Defendant where he appears to be responding to points made by Plaintiff. The full

discussion related to the above snippet is as follows:

“Romanenko: Since Kalnytskyi terminated our services, we had dozens of similar cases granted for our other clients who are happy with the services provided
Kalnytskyi: Then post on your Facebook page at least two dozen cases of Ukrainian clients with TPS status who have been granted asylum after March 22, 2024 – otherwise you are lying and deceiving people.”

The first part of the statement (starting with identifying Romanenko as the speaker) is a quote from Plaintiff’s responsive post. The second part of the statement (starting where it notes Kalnytskyi’s response starts) is Defendant’s response to his statement.

Defendant is not calling Plaintiff a liar or that he is deceiving people. What he is saying is that if what Plaintiff said is true – he should provide some evidence to support his claim. If there is no evidence to support such a statement, then that statement would be false. As such, Plaintiff would be “lying and deceiving people.” This snippet that Plaintiff relies upon is not a statement of fact. When read within the context of the entire statement it is a response to Plaintiff’s contention that he has “had dozens of similar cases granted for” other clients.

The above demonstrates that Plaintiff has failed to meet his burden to show this basis for his defamation claim. As such, Defendant’s motion is **granted** as to those statements.

As the Court in *Industrial Waste* explains, “*Vogel* demonstrates that mere assertions that a statement is ‘false,’ even in sworn declarations, do not satisfy a plaintiff’s burden to demonstrate falsity. As the court there put it, the ‘simple negation of the challenged statement fails to fairly meet its substance.’ [Citation omitted.]” (*Industrial Waste, supra*, 4 Cal.App.5th at 1159.) Plaintiff has not met its burden of demonstrating the probability of prevailing on its first and fifth cause of action with competent and admissible evidence showing the “minimal merit” of its libel claims.

Attorney Fees and Costs

Code of Civil Procedure § 425.16 states:

(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.

As outlined above, Defendant only prevailed on a minority of the statements Plaintiff alleges were defamatory. In one sense, this could be considered ‘prevailing’ on the special motion to strike since some of the allegations are being stricken. Overall, however, the Court finds that Defendant did not ‘prevail’ in that all the causes of action continue – even if only on some of the statements asserted in the Complaint. As such, Defendant is not entitled to fees or costs.

Even if Defendant could be deemed to have ‘partially prevailed’ there is no basis for awarding attorneys’ fees as Defendant is proceeding in pro per. As such, he has not incurred any attorney fees.

Accordingly, Defendant's request for attorneys' fees and costs is **denied**.

Summary and Conclusion

Defendant's motion to strike is **denied** as to the following statements:

- "He does not comply with the terms of the contract, and without notifying the client, he deducts money."
- "He does not follow the terms of his own contract, withdraws money without permission...."
- "He continued to withdraw money even after being terminated in order to avoid refunding the client."
- "He also charges twice for services that have already been provided – this is fraud."
- "To date, of the \$11,000 paid, nothing has been refunded."
- "After a few months, Romanenko refused to continue handling the asylum case unless the fee was increased by \$2,000, citing the following justification: 'Our signed contract says nothing about fixing the price for the future,' and the contract stated \$10,000."
- "Romanenko did not request or work with evidence," and
- "You did nothing to secure the scheduling of my individual hearing."

Defendant's motion is granted as to the following statements:

- "... and for \$500 per hour made many mistakes in the documents,"
- "He claims that he personally prepares the paperwork, but in reality it is done by incompetent staff in his office."
- "... you are lying and deceiving people."

Defendant's motion is also **granted** as to any other statements/quotations contained in the Complaint which were not specifically addressed by Plaintiff in his opposition, to the extent he claims they were defamatory. In other words, Plaintiff's case may proceed only based on the eight statements listed above wherein the court denied Defendant's Motion to Strike.

Defendant's request for attorney's fees and costs is **denied**.

9. 9:00 AM CASE NUMBER: C26-00255
CASE NAME: DANIEL HOGAN VS. GENERAL MOTORS, LLC
RE 1ST AMENDED COMPLAINT
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Defendant General Motors LLC ("Defendant") brings this demurrer to the First Amended Complaint ("FAC") of plaintiff Daniel Hogan ("Plaintiff"). Defendant challenges Plaintiff's third cause of action for